

BOARDS, COMMITTEES AND COMMISSIONS

9 Attachment 10

City of Waterville

Appendix 1J

Charge: Historic Preservation Commission

[Adopted 12-28-2023 by Ord. No. 199-2023; amended 5-21-2024 by Ord. No. 100-2024]

Establishment and Regulation.

City of Waterville Historic Preservation Ordinance

1 M.R.S., Chapter 13, Freedom of Access

City of Waterville Ethics Ordinance (Chapter 18)

City of Waterville Resolution 33-2022

Purpose.

The Commission shall have jurisdiction to regulate and preserve historic, architectural and cultural significant areas, landmarks and sites within their boundaries.

Membership.

Appointments shall be made as set forth in the City Charter.

Membership shall be comprised of seven members, including:

- One member of the board of directors of the Waterville Historical Society
- One member that resides within the boundaries of an adopted historic district, as depicted in the Historic Preservation Ordinance
- One member from the business community
- Four additional members

Members shall serve for staggered terms as set forth in Chapter 9 of the City Code. Initial appointments shall be made as follows

- Two members for five-year terms
- Two members for four-year terms
- Two members for three-year terms
- One member for a two-year term

Members shall have an interest in historic preservation or shall express a desire to get training in historic preservation within one calendar year of being appointed.

Where professionals are available in the community qualifications will conform to the Secretary of the Interior's Standards as outlined in 36 CFR 61, Appendix A. Information on the credentials of the Commission members must be kept on file in the Planning Department and available to the public. This applies to any architectural historians, archaeologists, historic preservationists, etc.

Scope of Authority.

The Commission's role is to advise the Council, and to provide the Council with recommendations based on its research, understanding, conclusions with respect to the

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projected benefits and detriments of proposals, and its professional and personal judgments regarding historic preservation.

It is not authorized to make promises or enter into verbal or written agreements purporting to represent the City.

The Commission is tasked with the following scopes:

- 1) Review alterations, relocation and demolition of the designated historic and prehistoric properties under its jurisdiction.
- 2) Review all new construction affecting historic and prehistoric properties and/or districts within its jurisdiction to determine if a locally listed historic or prehistoric archeological site will be affected.
- 3) Review all proposed National Register nominations for properties within its jurisdiction. When the Commission considers a National Register nomination or other actions which are normally evaluated by a professional in a specific discipline and that discipline is not represented on the Commission, the Commission shall seek expertise in that area before rendering its decision.
- 4) Conduct a survey of historic and archeological resources within Waterville according to guidelines established by the Maine Historic Preservation Commission and maintain a record of such.
- 5) Make recommendations for designation of local historic landmarks and historic districts to the appropriate governing body and keep records of such decisions.
- 6) The Commission shall establish and use written guidelines for the conservation of designated local landmarks and historic districts in decisions on requests for permits for new construction, alterations, demolition, relocation, or additions to listed landmarks and buildings within the Historic District and make recommendations to Council.
- 7) Act in an advisory role to other officials and departments of local government regarding the protection of local cultural preservation.
- 8) Act as a liaison on behalf of the local government to individuals and organizations concerned with historic preservation.
- 9) Work toward the continuing education of citizens regarding historic preservation issues and concerns.
- 10) Submit an annual report of the activities of the Commission to the Maine Historic Preservation Commission.
- 11) Participate in at least one informational/educational training workshop per year sponsored by the Maine Historic Preservation Commission.

Conduct of Business.

The Commission is an official body of the City. As such, it is subject to Maine's Freedom of Access Act (1 M.R.S. 403) and must meet in a location accessible to the public, allow the public to attend its meetings, publicly post the dates and times of its meetings, and keep minutes for the public record.

No member of the Commission may represent themselves or a family member, their business interests or those of a business partner, or participate in Commission deliberations or vote on any matter having to do with such interests. When such a conflict occurs, the affected Commission member(s) must declare the conflict, recuse themselves from the meeting and vacate the meeting space until the conflict ceases to exist.

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The Commission shall elect annually a Chair and a Secretary from its membership within two weeks after the City inauguration. A quorum of the Commission consists of five members. All members, other than the Chairperson, are permitted to make and second motions; and all members present, unless abstaining, may participate in the discussion and deliberation. No meeting of the Commission shall be held, or once begun, shall be continued, without a quorum as established in this section. The Commission shall act by majority vote of the members present.

The Chairperson is an authorized voter but shall conduct the meeting with impartiality.

No member shall be authorized to vote on a matter if he or she did not attend a public hearing or hearings held on the matter.

The Commission shall create bylaws for procedures to run meetings.

Reporting.

Notice of any hearing must be made at least seven days prior to the hearing in a newspaper of general local circulation. Notice must also be either mailed to or hand-delivered to the applicant or all property owners within a 200-foot radius of the property under consideration.

Notice of any decision must be either mailed to or hand-delivered to the applicant, the applicant's representative or agent, the code enforcement office within seven days of the Commission's decision.

Sunset.

The Commission is a standing commission and has no sunset.